

Acceptable Means of Compliance and Guidance Material to Annex I (Part 21) to Commission Regulation (EU) No 748/2012, Issue 2, Amendment 18

Annex I to ED Decision 2026/005/R

‘AMC and GM to Part 21 — Issue 2, Amendment 18’

The amendments are presented as follows:

- deleted text is ~~struck through~~;
- new text is **highlighted**;
- an ellipsis ‘[...]’ indicates that the rest of the text is unchanged.

Note to readers

‘Agency’ and ‘EASA’ are used interchangeably, and this is most visible in consolidated texts. In all cases, both terms refer to the European Union Aviation Safety Agency.

Annex I to Decision 2012/020/R of the Executive Director of the Agency of 30 October is amended as follows:

GM1 21.A.174(b) Application

NEW AIRCRAFT AND USED AIRCRAFT

The process of obtaining an airworthiness certificate for a new aircraft relies on the assumption that the aircraft has been subject to a controlled process under the responsibility of the production organisation. In this context, the issuance of the airworthiness review certificate (without an airworthiness review) may be supported by the statement of conformity referred to in point 21.A.174(b)(2)(i), as long as no significant deviations in terms of aircraft usage, maintenance or configuration have occurred after the aircraft left the responsibility of the production organisation.

If the aircraft has, for a significant period, remained outside the control of the production organisation (e.g. operated for purposes other than production-related check flights or positioning flights), the statement of conformity may no longer accurately reflect its condition. In such cases, the aircraft should be treated as used and an airworthiness review is required to assess its post-production history and ensure compliance with the applicable requirements.

This means that for the purpose of point 21.A.174(b), an aircraft is normally considered 'new' if it has never been issued with an airworthiness certificate. However, the competent authority should assess specific situations on a case-by-case basis, such as aircraft that have been stored for extended periods after the aircraft left the control of the production organisation. This assessment should take into account factors such as when and how the continuing airworthiness management and maintenance were performed during the period after the aircraft left the control of the production organisation, and whether the aircraft has been subject to any significant ground or flight usage that could result in deviations from its original production condition.

It should be noted that an aircraft may remain under the control of the production organisation after the statement of conformity referred to in point 21.A.174(b)(2)(i) (e.g. EASA Form 52) has been issued. In such cases, any maintenance performed on the aircraft should be certified using EASA Form 53.

GM1 21.A.174(b)(3) Application

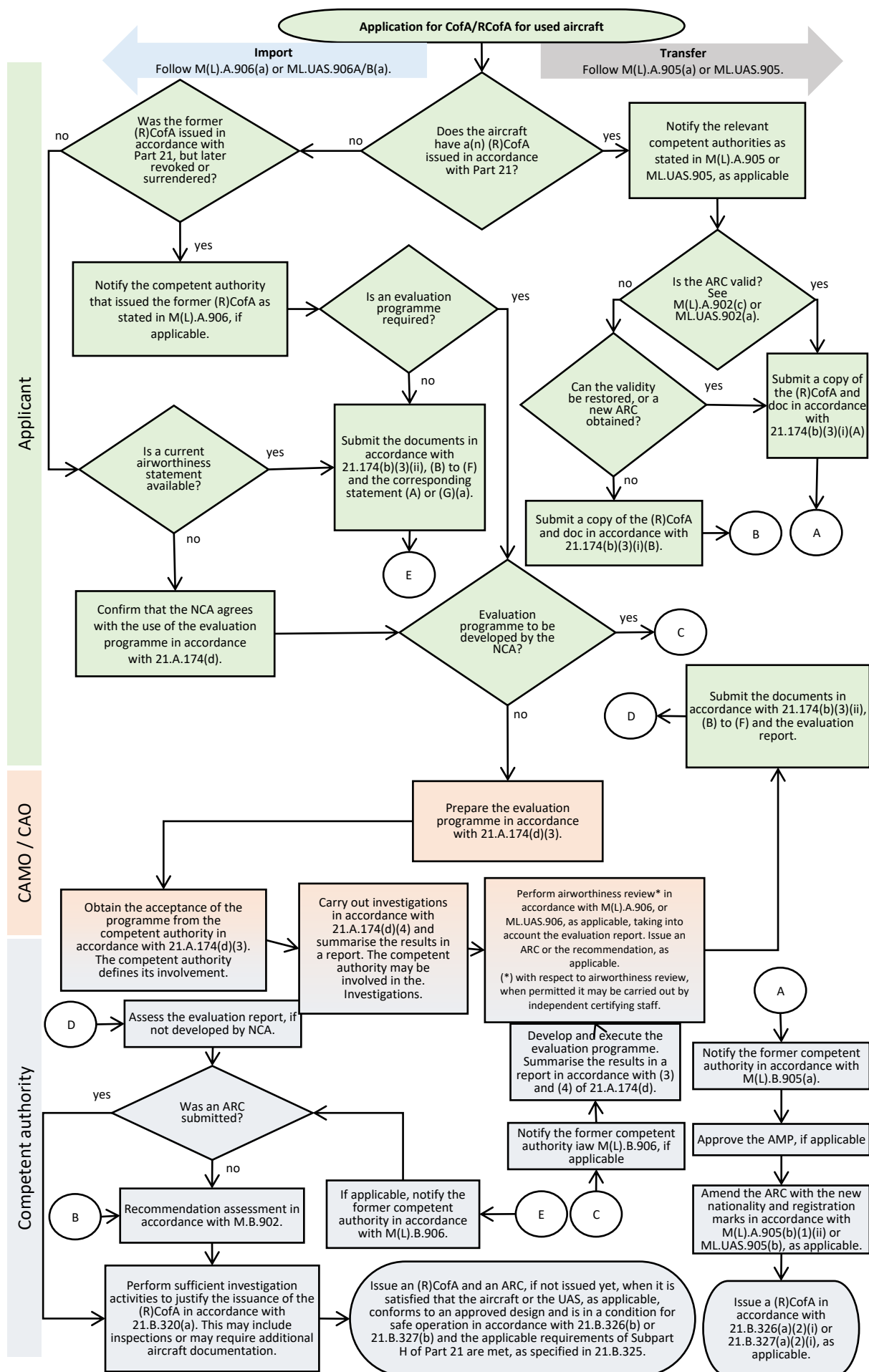
AIRWORTHINESS CERTIFICATE: APPLICATION AND ISSUANCE PROCESS FOR USED AIRCRAFT

- (a) A certificate of airworthiness (CofA) or a restricted certificate of airworthiness (RCofA) may only be issued if an airworthiness review has been satisfactorily completed, making these processes inherently connected. Consequently, the requirements outlined in points M(L).A.905 and M(L).A.906 of Regulation (EU) No 1321/2014, as well as in points ML.UAS.905 and ML.UAS.906 of Delegated Regulation (EU) 2024/1107, should be followed, as applicable.

It is important to highlight that, in the context of aircraft transfers between Member States, an applicant that wishes to register an aircraft in another Member State and obtain a new airworthiness certificate should first notify both the current competent authority and the authority of the State where the aircraft will be registered. This is to prevent the aircraft from being deregistered before the application for a new airworthiness certificate has begun. If deregistration occurs too early in the transfer process, there may be a period during which no

Member State is responsible for the aircraft. This could result in the process being treated as an import rather than a transfer, requiring additional investigations to obtain the airworthiness certificate.

- (b) The flow diagram below illustrates the application process for obtaining a CofA or an RCoFA for used aircraft.



GM1 21.A.174(b)(3)(ii) Application

IMPORT OF AIRCRAFT

(a) An application for an airworthiness certificate may be submitted for a used aircraft that does not have an airworthiness certificate issued in accordance with Part 21. This process is commonly referred to as 'import of aircraft' and includes the following cases:

- aircraft previously registered in a third country;
- aircraft used to carry out activities or services as defined in Article 2(3)(a) of Regulation (EU) 2018/1139 (e.g. police, search and rescue, firefighting), if Section I (airworthiness and environmental protection) has not been opted in in accordance with Article 2(6) of that Regulation;
- aircraft that are registered in a Member State, but their regulatory safety oversight has been transferred to a third country, i.e. under the Article 83 *bis* agreement of the Chicago Convention;
- aircraft that were issued with an airworthiness certificate by a Member State in accordance with Part 21, but the certificate has been revoked or surrendered;
- aircraft that were registered in a Member State after being imported from a third country and have not been issued with an airworthiness certificate by a Member State;
- unmanned aircraft that have not been issued with an airworthiness certificate by a Member State under Part 21, as they are not intended to be operated in the 'high-risk' (i.e. SAIL V–VI) operation in the 'specific' category.

In all such cases, the continuing airworthiness requirements set out in Regulation (EU) No 1321/2014 or in Delegated Regulation (EU) 2024/1107, as applicable, may not have been previously applicable, as the aircraft may have been subject to a different regulatory framework. Consequently, the import process requires careful verification by all parties involved to ensure that the aircraft complies with all applicable requirements and meets the expected airworthiness standards.

(b) As required by point (a)(3) of point M(L).A.906 of Regulation (EU) No 1321/2014 and point ML.UAS.906 of Delegated Regulation (EU) 2024/1107, as applicable, all maintenance must be performed to comply with the approved, or declared, aircraft maintenance programme (AMP). Among other requirements, the AMP must meet the applicable provisions of Annex I (Part-26) to Regulation (EU) 2015/640. In some cases, particularly when an aircraft originates from a different regulatory framework, additional assessments and approvals may be required, potentially extending the process of obtaining an airworthiness certificate. Therefore, it is recommended that the person or organisation that is responsible for the continuing airworthiness of the aircraft initiate the review of these requirements as early as possible to avoid unnecessary delays in obtaining an airworthiness certificate.

(c) If an aircraft is imported from a third country with which the EU has concluded a bilateral agreement, the application for an airworthiness certificate should follow the provisions outlined in that agreement and the associated implementation procedures, where applicable (e.g. Technical Implementation Procedures (TIPs)).

GM2 21.A.174(b)(3)(ii) Application

AIRWORTHINESS CONSIDERATIONS FOR THE IMPORT OF USED AIRCRAFT

During the process of obtaining an airworthiness certificate for a used aircraft that does not have an airworthiness certificate issued in accordance with Regulation (EU) No 748/2012, several distinct but interrelated processes should be followed. Each of these processes has a specific scope and objective, and takes place at a different stage of the import process. While their roles are distinct, synergies can be leveraged; for example, the investigations and the respective results from the evaluation programme should be considered during the airworthiness review. In particular, when determining the items to be sampled, due consideration may be given to areas already subject to detailed scrutiny, allowing the sampling to focus on areas not previously examined or where gaps or uncertainties have been identified.

The following key steps are expected to be followed as part of the import process:

(a) Airworthiness statement or evaluation programme

The airworthiness statement confirms the aircraft's airworthiness status and, if applicable, identifies any deviations, on the basis of the verifications performed by the former aviation authority. As specified in ICAO Annex 8, some Contracting States to the Chicago Convention facilitate the import of aircraft onto the register of another State by issuing of an 'export certificate of airworthiness' or a similar document. Although such a document is not valid for the purpose of flight, it provides confirmation by the exporting State that a recent and satisfactory review of the aircraft's airworthiness status has been carried out. By issuing such a statement, the exporting State confirms that the persons and/or organisations involved in the continuing airworthiness management and maintenance of the aircraft held the appropriate approvals to perform their respective responsibilities while the aircraft was registered in that State. In effect, it indicates that, had the aircraft remained on the register of the exporting State, it would have continued to qualify for the continuation of its certificate of airworthiness. It is expected that the State issuing such an airworthiness statement follows procedures closely aligned with those applicable to the issuance or renewal of a certificate of airworthiness.

This confirmation from the exporting State serves as a reference for the organisation that is responsible for the continuing airworthiness of the aircraft, enabling it to rely, to an appropriate extent, on validated records and prior assessments.

Applicants for an airworthiness certificate are advised to consult the competent authority of the Member State in which the aircraft is intended to be registered at an early stage of the process. In addition, before proceeding with the import of an aircraft, applicants should verify that the exporting State is willing and able to issue the statement referred to in point 21.A.174(b)(3)(ii)(A).

In exceptional cases where such an airworthiness statement cannot be obtained, an evaluation programme may be used as an alternative, subject to the agreement of the competent authority of the Member State of intended registration. Where agreed, the evaluation programme should be developed in accordance with point 21.A.174(d)(3) and submitted to that competent authority for acceptance. The investigations defined therein should subsequently be conducted in accordance with point 21.A.174(d)(4). The evaluation programme is to be

implemented at the beginning of the import process and is intended to compensate for the reduced level of assurance resulting from the absence of verification performed by the former aviation authority prior to issuing an airworthiness statement. The evaluation programme is an investigative process that should focus on developing a comprehensive understanding of the aircraft's prior condition and operational context, with the objective of identifying and resolving any gaps, inconsistencies or uncertainties. The evaluation programme includes, but is not limited to, assessments of the continuing airworthiness records, operational history, maintenance performed, design changes embodied and storage conditions of the aircraft. Some of these assessments may require the involvement or support of a design organisation.

(b) Tasks performed by the person or organisation that is responsible for the continuing airworthiness of the aircraft under Regulation (EU) 2018/1139

The person or organisation that is responsible for the continuing airworthiness of the aircraft should perform all necessary actions to ensure that the aircraft is airworthy and fully compliant with the applicable continuing airworthiness requirements. This includes, but is not limited to, developing the aircraft maintenance programme with details of any bridging checks, ordering the required maintenance, ensuring compliance with applicable ADs, addressing any defects and ensuring that the aircraft conforms to its approved configuration.

The depth and scope of the investigations required to ensure that the aircraft is airworthy and complies with the applicable continuing airworthiness requirements may vary depending on the associated risk, including the aircraft's operational and maintenance history, and the extent and quality of any prior investigations already conducted.

(c) Airworthiness review

An airworthiness review should be conducted after the person or the organisation that is responsible for the continuing airworthiness of the aircraft has completed all necessary investigations to gain sufficient knowledge of the aircraft to be able to properly manage the continuing airworthiness tasks required to ensure the airworthy condition of the aircraft, such as ordering the necessary maintenance. The airworthiness review may start while the aircraft is subjected to maintenance; however, it can only be finalised once it is confirmed that the aircraft is in an airworthy condition, typically after all necessary maintenance has been completed. The objective of the airworthiness review is to confirm the aircraft's airworthy condition and, if applicable, to identify any shortcomings related to its airworthiness. However, it is not intended to replace the other investigations or tasks that the person or organisation responsible for the continuing airworthiness of the aircraft is required to carry out.

(d) Involvement of the competent authority

During the process of obtaining an airworthiness certificate, the competent authority to which the application was submitted must conduct its own investigations. They may be conducted in coordination with organisations involved in the process, such as during the evaluation programme or independently, or both, as deemed necessary.

AMC1 21.A.174(b)(3)(ii)(A) Application

AIRWORTHINESS STATEMENT

- (a) The applicant that imports the aircraft should obtain an airworthiness statement, as with it the aviation authority previously responsible for its oversight provides information regarding the aircraft's airworthiness condition. That aviation authority is typically better positioned to conduct an airworthiness assessment, as it has knowledge of the applicable regulatory framework to which the aircraft was subject and keeps some of the aircraft's historical records.

The airworthiness statement should declare either:

- (1) that the aircraft conforms to the design approved by the appropriate authority that was responsible for the oversight of the aircraft and complies with the continuing airworthiness requirements applicable at the time the airworthiness statement was issued; or
- (2) if agreed between the exporting and importing States through bilateral agreements or other means, that the aircraft conforms to the design approved by the Agency and complies with the continuing airworthiness requirements specified in Regulation (EU) No 1321/2014 or in Delegated Regulation (EU) 2024/1107, as applicable.

Any deviation from the approved design and any non-compliance with the applicable continuing airworthiness requirements should be indicated.

An example of an airworthiness statement may be found in ICAO Doc 9760 'Airworthiness Manual'.

- (b) In certain exceptional cases, an application may be accepted without a current airworthiness statement from the exporting State, as stated in point 21.A.174(d).

These cases may include either of the following:

- civil disturbances or war in the territory of the former State of registry;
- discontinuation of the aviation authority in the former State of registry;
- significant and repeated non-compliances with the ICAO minimum airworthiness standards by the former State of registry;
- the absence of procedures by the former aviation authority for issuing airworthiness statements during the export of aircraft;
- an airworthiness statement has been obtained but it lacks the necessary information or is older than 60 days.

In some cases, the exporting State may decline to issue an airworthiness statement even if there are no airworthiness concerns (e.g. if the request is made after the aircraft has been deregistered, because once deregistration occurs, that State is no longer responsible for the aircraft's oversight).

Such cases may also be considered exceptional cases for the purpose of point 21.A.174(d), provided that the competent authority that reviews the application is satisfied with the reasons for the inability to obtain the statement. Furthermore, the competent authority should be satisfied that the situation is an isolated case and does not constitute a systematic practice by the applicant.

GM1 21.A.174(b)(3)(ii)(A) Application

RISKS OF HAVING AN AIRCRAFT WITHOUT REGISTRATION

When an aircraft is exported from one State and registered in another, the applicant needs to ensure that there is a reasonable period available for the relevant States and other parties to coordinate the change of registration.

In these circumstances, consultation among the exporting and importing States, and the relevant operators or owners can ensure that all parties have a common understanding of the proposed timing of, and requirements for, issuance of an export certificate of airworthiness or equivalent, and completion, on a nearly concurrent basis, of the deregistration by the exporting State and registration by the importing State.

If an aircraft is deregistered by a State and the process of registration in another State is not promptly commenced, the owner should be aware that complications may arise if the condition is prolonged. The main consequence is that no State is responsible for the aircraft in accordance with the Chicago Convention and applicable Annexes, and therefore an export certificate of airworthiness will unlikely be obtained. In addition, when an aircraft is not registered for a long time, the continuing airworthiness status of the aircraft is disrupted, and assessment of the airworthiness status may become progressively more complex and may create difficulties in the issuance of an airworthiness certificate.

In order to avoid any delays with the registration, it is important for the owner to know in advance the aircraft registration requirements of the importing State and deregistration requirements of the exporting State.

AMC1 21.A.174(b)(3)(ii)(D) and 21.A.174(d)(2) Application

ACCEPTABLE EVIDENCE OF THE INITIAL BUILT STANDARDS

Evidence as to the approved design according to which the aircraft was initially built and delivered may include a certificate of airworthiness for export issued by the State of manufacture, or any other conformity statement issued by the State of manufacture or the production organisation. Such documentation should identify the aircraft, its type design, any changes to its type certificate embodied at the time of initial delivery, and any unintentional deviations from the approved type design occurring in production (often referred to as concessions, divergences or non-conformances).

In some cases, obtaining the documents mentioned above may not be possible; for example, for older aircraft types. In such cases, and subject to the competent authority's agreement, the applicant should provide alternative evidence containing sufficient information about the production organisation, the aircraft and its approved design at the time of initial delivery.

GM1 21.A.174(b)(3)(ii)(F) Application

CO₂ EMISSIONS PRODUCTION CUT-OFF REQUIREMENTS FOR A USED AEROPLANE ~~ORIGINATING FROM A NON-MEMBER STATE~~ THAT AT THE TIME OF APPLICATION DOES NOT HAVE AN AIRWORTHINESS CERTIFICATE ISSUED IN ACCORDANCE WITH Part 21

Volume III of Annex 16 to the Chicago Convention ('ICAO Annex 16') includes CO₂ emissions production cut-off standards that apply to subsonic jet aeroplanes with a Maximum Take-Off Mass (MTOM) greater than 5 700 kg and propeller-driven aeroplanes with a MTOM greater than 8 618 kg,

for which a type certificate was issued but that were not certified for CO₂ emissions in accordance with Volume III of ICAO Annex 16, and for which the individual certificate of airworthiness (CofA) was first issued on or after 1 January 2028 (Sections 2.1.1.(f) and (g) of Chapter 2 of Part II of Volume III of ICAO Annex 16). These production cut-off standards were introduced with the first edition of Volume III of ICAO Annex 16.

The applicant for a CofA (or a restricted CofA) for a used aeroplane ~~originating from a non-Member State~~ that at the time of application does not have an airworthiness certificate issued in accordance with Part 21 is specifically required to provide the date on which the first CofA was issued. This should permit the competent authority of the Member State of registry to establish whether a CO₂ emissions production cut-off requirement applies to that aeroplane and verify that the compliance with this requirement has been demonstrated. If such a requirement applies, the applicant for a CofA (or a restricted CofA) shall provide the CO₂ emissions evaluation metric value as certified in accordance with the applicable Standards and Recommended Practices in Volume III of ICAO Annex 16. The Agency publishes the CO₂ emissions evaluation metric values approved by the Agency in the EASA Aeroplane CO₂ Emissions Database¹.

If a CO₂ standard applies, approval of the aeroplane's CO₂ emissions evaluation metric value by the Agency is a prerequisite for a CofA (or a restricted CofA) from a Member State and is typically part of the Agency's approval of the type design.

AMC1 21.A.174(d) Application

EVALUATION PROGRAMME

The process for developing and carrying out an evaluation programme consists of four main steps:

- assessment of applicability and preconditions;
- development of the evaluation programme and obtaining the competent authority's acceptance of the evaluation programme;
- conduct of the investigations outlined in the evaluation programme;
- issuance of an evaluation report with conclusions.

All four steps have to be carried out by a single organisation approved as referred to in point 21.A.174(d)(i) or, if applicable, by the competent authority referred to in point 21.A.174(d)(ii).

Since the airworthiness review is a different process, it does not need to be conducted by the same approved organisation or, if applicable, by the competent authority that implemented the evaluation programme.

The evaluation programme should be developed and implemented taking into account the following:

- (a) Preconditions to establish an evaluation programme:
 - (1) evidence of the approved design according to which the aircraft was initially built and delivered;
 - (2) availability of the previous maintenance programme or, if not, availability of the ICA;
 - (3) sufficient historical records are available to meet the aircraft's continuing airworthiness record system requirements in point M.A.305 of Annex I (Part-M) or point ML.A.305 of

¹ <https://www.easa.europa.eu/en/domains/environment/easa-aeroplane-co2-emissions-database-0>

Annex Vb (Part-ML) to Regulation (EU) No 1321/2014, or in accordance with point ML.UAS.305 of Annex I (Part-UAS) to Delegated Regulation (EU) 2024/1107, as applicable, or to an equivalent level;

- (4) journey logs and/or technical logs are available to establish the nature of previous aircraft operations (e.g. aerial work, commercial air transport), previous aircraft utilisation (e.g. flight hours, flight cycles) and previous aircraft operating environment (e.g. frequent icing/de-icing, sandstorms, saline environments).

Lost, destroyed or illegible records may be reconstructed, for example, by:

- reference to other records which reflect the time in service;
- research of records maintained by maintenance organisations;
- reference to records maintained by individual mechanics.

The reconstructed records should be submitted to the competent authority for acceptance. If the records cannot be reconstructed, sufficient activities should be performed to ensure the airworthiness of the aircraft and its components. Such activities may include additional maintenance, such as part replacements, overhauls, additional inspections, including non-destructive testing (NDT), and other activities as agreed upon with the competent authority.

- (b) All relevant factors should be assessed to determine the appropriate level of confidence and, consequently, the required depth (e.g. level of detail) and scope (e.g. how far back in the past and which aspects require increased attention) of the investigation activities under the evaluation programme. These factors include, but are not limited to, the following:

- (1) reasons for the unavailability of the airworthiness statement;
- (2) any experience of the organisation or the competent authority developing the evaluation programme related to the import of aircraft from the previous State of registry;
- (3) any experience of the organisation or the competent authority developing the evaluation programme related to the import of aircraft from the previous aircraft owner/operator;
- (4) completeness, accuracy, consistency and reliability of the aircraft's continuing airworthiness records and journey logs and/or technical logs reviewed. Particular focus should be placed on the period following the most recent periodical inspection or other equivalent determination of continued airworthiness, carried out for the purpose of the issuance, renewal or continued validity of the last certificate of airworthiness, or equivalent;
- (5) aircraft age and ownership history since the period specified in point (b)(4) (i.e. registrations, length of period(s) without a registration, owners/operators);
- (6) previous aircraft operating environment(s) and previous aircraft operating profile(s);
- (7) physical aircraft condition;
- (8) aircraft preservation condition.

- (c) The following content should be included in an evaluation programme to be proposed to the competent authority for acceptance:

- (1) the conclusions drawn from the factors listed in point (b);
 - (2) a description of any reconstructed aircraft's continuing airworthiness records;
 - (3) a description of any difficulties encountered with the documents used to determine conformity with a design approved in accordance with Regulation (EU) No 748/2012, such as missing, incomplete or outdated design data, unclear applicability of repairs, or supplemental type certificates;
 - (4) identification of all events that may have required unscheduled maintenance (e.g. lightning strikes, hard landings, long-term storage, propeller or rotor overspeed, over-torque, impact on a main rotor blade, etc.) and that have occurred since the period specified in point (b)(4), as well as any relevant events that have occurred throughout the aircraft's lifetime that might require closer attention, such as significant damage to the aircraft. An assessment should be conducted of the aircraft's continuing airworthiness records in relation to the identified events, and the conclusions identified in the evaluation programme with respect to the actions taken, if needed, to restore the aircraft condition for safe operation (including any evolution of the approved design) after these events;
 - (5) proposed investigation activities including physical inspection suitable to:
 - (i) identify the current aircraft configuration and deviations from the design approved by the Agency;
 - (ii) identify repairs, unrepaired damage and modifications previously performed on the aircraft, including verification of the actions taken in response to the events identified in point (c)(4);
 - (iii) identify any unclear or unacceptable design or maintenance standards;
 - (iv) clarify any ambiguous aspects arising from the conclusions in point (b);
 - (6) identification of the organisations needed to determine the current aircraft configuration and determine deviations from an EASA approved design (e.g. POA, DOA, manufacturer, TC/STC holder, CA(M)O, etc.);
 - (7) identification of the organisations needed to support the investigation activities. These may include, for example:
 - (i) approved maintenance organisations responsible for carrying out inspections, functional tests, panel openings, etc.;
 - (ii) the organisation responsible for the management of continuing airworthiness, if different from the one developing the evaluation programme; and
 - (8) the date and location the inspections and investigations proposed as part of the evaluation programme are to be performed.
- (d) If the evaluation programme is developed by an organisation, it should be accepted by the competent authority before it is implemented. The competent authority may also wish to be involved in the implementation of the programme, as specified in AMC1 21.B.326(a)(3) and 21.B.327(a)(3).

The evaluation programme must be implemented in accordance with what was agreed. Any significant deviations from the accepted evaluation programme should be coordinated with, and compensating measures, if any, agreed by the competent authority.

- (e) Upon completion of the investigations defined in the evaluation programme, an evaluation report should be issued and submitted to the person or the organisation that is responsible for the continuing airworthiness of the aircraft. The report should contain, as a minimum, the following information:

- (1) reference to the accepted evaluation programme;
- (2) a description of the investigation activities performed;
- (3) a description of the inspection and investigation results;
- (4) a listing and justification of deviations (if any) from the accepted evaluation programme, including the compensating measures agreed with the competent authority.

If necessary and appropriate, the organisation or competent authority that implemented the evaluation programme should provide assistance to the person or the organisation that is responsible for the continuing airworthiness of the aircraft, specifically in addressing any airworthiness-related issues identified during the investigations. This may include clarification of the issues detected or recommendations on how to address specific concerns.

AMC2 21.A.174(d) Application

HISTORICAL DOCUMENTATION OF THE AIRCRAFT

The following aspects relating to the assessment and analysis of historical documentation (records and manuals) should be considered when developing an evaluation programme:

- (a) Previous air operations and operating environment(s)

The effects of the previous operating profiles and operating environments (on ground and in flight) should be assessed. Support from the design approval holder may be necessary to address the impact on continuing airworthiness and on airworthiness limitations in cases such as:

- (1) ground and/or flight operations previously conducted beyond the limitations established in accordance with Regulation (EU) No 748/2012 (e.g. flight envelope limitations specified in the AFM); and/or
- (2) ground and/or flight operating environments not addressed in the ICA established in accordance with Regulation (EU) No 748/2012.

- (b) Conformity to an approved design and equipment required for air operations

Configuration elements (e.g. changes to type design) previously incorporated in the aircraft, as well as operational, emergency or other equipment installed or carried on board — in particular those associated with former air operations such as firefighting — should be identified. In order to remain installed on the aircraft, such elements or equipment should comply with the applicable approval requirements of Regulation (EU) No 748/2012 or be accepted under the

provisions of the applicable bilateral agreement; otherwise, they should be permanently removed.

The permanent removal of a configuration element (e.g. a modification) should always be carried out in accordance with approved maintenance data, such as a service bulletin issued by the type certificate holder. If no approved maintenance data is available, appropriate approved data should be obtained in accordance with Regulation (EU) No 748/2012 to support the removal and ensure compliance with the applicable requirements. Depending on the complexity of the tasks (such as the removal of wiring), detailed maintenance instructions may be required. Following instructions intended for the temporary removal of equipment may not be appropriate, as this could result in a condition that deviates from the type design (e.g. residual mounting holes).

(c) Certification of maintenance

The certificates issued after maintenance should be reviewed to confirm that the maintenance was performed using approved data and by appropriately qualified staff or approved organisations. The objective is not to verify whether the staff or organisations were appropriately approved, but rather to confirm that they were authorised to perform the work and that the work was within their scope of approval.

(d) Airworthiness limitations

Assessments should be conducted to ensure that the aircraft and any installed components have not exceeded their airworthiness limitations, taking into account the effects of previous air operations and operating environments on those limitations. Any change to the airworthiness limitations should be approved in accordance with Regulation (EU) No 748/2012.

GM1 21.A.174(d)(1) Application

FORMER AVIATION AUTHORITY

When importing an aircraft for which the aviation authority responsible for its oversight has not issued a statement confirming its airworthiness status, it is important to understand the reason for this omission. It should be ensured that the reason for this omission is not due to airworthiness concerns that may indicate that the aircraft cannot reasonably be returned to an airworthy condition. If there are known airworthiness issues that have been identified, addressed and properly corrected, the import of aircraft may still be acceptable through the development of an evaluation programme.

Some States do not link the process of aircraft registration with the issuance of certificate of airworthiness and therefore it is possible that a registered aircraft has never been issued with a certificate of airworthiness. In these cases, a statement from the State of registry may not be sufficient if the airworthiness condition of the aircraft has not been assessed by the relevant authority. Therefore, relevant information regarding the airworthiness status of the aircraft may only be available from the authority that issued the last certificate of airworthiness.

AMC1 21.B.320 Investigation

INVESTIGATIONS REQUIRED FOR THE ISSUANCE OF AN AIRWORTHINESS CERTIFICATE FOR USED IMPORTED AIRCRAFT

- (a) The competent authority should establish a procedure describing the investigation process to ensure that the documentation provided with the application is accurate and that the aircraft or unmanned aircraft system (UAS), as applicable, conforms to an approved design, is in a condition for safe operation, and meets the applicable requirements of Section A Subpart H of Annex I (Part 21).

The depth of such investigations should be determined using a risk-based approach, considering multiple factors, including but not limited to the following:

(1) Origin of the aircraft

Assess the oversight environment under which the aircraft was previously operated. This assessment may include, as appropriate:

- (i) consideration of the safety oversight capabilities of the States where the aircraft was registered; for example, based on the ICAO airworthiness implementation score;
- (ii) the existence of bilateral agreements or working arrangements with the State of registry;
- (iii) verification of whether the aircraft was part of an operator included in the EU Air Safety List or originated from a State with operators listed there.

(2) Previous experience with the organisations involved

Take into account how the organisation responsible for the continuing airworthiness management and the organisation responsible for issuing the airworthiness review certificate or recommendation have previously complied with the applicable requirements.

(3) Type of previous operations

Consider whether the aircraft was used in commercial air transport, private operations, special operations such as firefighting, or other categories that may influence its airworthiness status.

(4) Time outside the EU regulatory system

Assess the period during which the aircraft has been subject to a different regulatory system.

- (b) The assessment of the recommendation for the issuance of the airworthiness review certificate, as per point M.B.902 of Regulation (EU) No 1321/2014, may be conducted in conjunction with the investigations required for the issuance of the airworthiness certificate.

- (c) If there are doubts about the adequacy of the maintenance performed, including concerns regarding its quality or integrity, it may be necessary to either perform the maintenance again or have it thoroughly inspected by a person or an approved organisation, as applicable under

Regulation (EU) No 1321/2014 or Delegated Regulation (EU) 2024/1107, to ensure that the aircraft meets the applicable airworthiness standards. This may be required, for example, if the maintenance was performed by organisations with inadequate oversight or if there is evidence indicating that the aircraft has been subject to poor airworthiness standards.

- (d) When importing an aircraft from a third country with which the competent authority has limited previous experience, the competent authority may contact other Member States that have previously imported aircraft from that same third country in order to benefit from their experience and share any relevant information.

AMC1 21.B.326(a)(3) and 21.B.327(a)(3) (Restricted) Certificate of airworthiness

ACCEPTANCE OF THE EVALUATION PROGRAMME BY THE COMPETENT AUTHORITY

When an application for an airworthiness certificate is submitted without a statement reflecting the aircraft's airworthiness status, as specified in point 21.A.174(d), an evaluation programme should be submitted to the competent authority for acceptance.

If the competent authority finds that the proposed evaluation programme is suitable to properly evaluate the status of the aircraft with regard to its configuration and maintenance, including conformity to the approved type design, existing modifications and repairs and maintenance, and continuing airworthiness status, it should accept it and notify the applicant about the acceptance and, if applicable, about the involvement of the authority in the proposed investigation activities.

In making this determination, the competent authority should, if relevant, take into account its own experience with imports of aircraft originating from the same third-country regulatory framework or with known shortcomings typically observed in the same aircraft models that may require particular attention.

If the competent authority finds that the proposed evaluation programme is insufficient to properly evaluate the status of the aircraft, it should reject the evaluation programme and provide a justification for its decision to do so.

~~GM-21.B.325(a) Airworthiness certificates~~

~~1. Completion of the certificate of airworthiness by a Member State~~

~~Block 5: Insert restrictions developed in accordance with Part 21, including any reference to limitations as indicated in GM 21.B.320(b)(6).~~

~~2. Completion of the restricted certificate of airworthiness by a Member State~~

~~Block 5: Insert restrictions developed in accordance with Part 21, including any reference to limitations as indicated in GM 21.B.320(b)(6).~~

~~GM-21.B.325(b) Completion of the Airworthiness Review Certificate by a Member State~~

~~1. Purpose~~

~~In accordance with the applicable continuing airworthiness requirements a certificate of airworthiness is valid only if a valid airworthiness review certificate is attached to it. For new aircraft, the competent authority will issue the airworthiness review certificate when issuing the certificate of airworthiness.~~

GM1 Appendix V and Appendix VI — EASA Form 24 and EASA Form 25 — (Restricted) Certificate of Airworthiness

COMPLETION OF THE CERTIFICATE OF AIRWORTHINESS (CofA) AND RESTRICTED CERTIFICATE OF AIRWORTHINESS (RCofA)

Block 4: If the certification specification used primarily to certify the aircraft is in the left column, use the corresponding categories identified in the right column of the following table:

Certification specifications	(R)CofA category (Block 4)
CS-LSA	Light Sport Aeroplanes
CS-VLA	Very Light Aeroplanes
CS-VLR	Very Light Rotorcraft
CS-22	Sailplanes or Powered Sailplanes
CS-23	'Normal, Utility, Aerobatic and Commuter Aeroplanes' or 'Normal-category airplane'
CS-25	Large Aeroplanes
CS-27	Small Rotorcraft
CS-29	Large Rotorcraft
CS-31HB	Hot Air Balloons
CS-31GB	Gas Balloons
CS-31TGB	Tethered Gas Balloons

Alternatively, Member States may use the information provided in the field on airworthiness category in the TCDS.

Block 5: Insert the restrictions developed in accordance with Part 21 or Part 21 Light, including any reference to limitations as indicated in GM 21.B.320(b)(6) or GM1 21L.B.161(a)(6).

GM1 21.B.326(a)(3) and (b)(3) (a)(1)(ii) and (a)(3)(iv) Certificate of airworthiness

CO₂ EMISSIONS PRODUCTION CUT-OFF REQUIREMENTS

Volume III of Annex 16 to the Chicago Convention ('ICAO Annex 16') includes CO₂ emissions production cut-off standards that apply to subsonic jet aeroplanes with a Maximum Take-Off Mass (MTOM) greater than 5 700 kg and propeller-driven aeroplanes with a MTOM greater than 8 618 kg, for which a type certificate was issued but that were not certified for CO₂ emissions in accordance

with Volume III of ICAO Annex 16, and for which the individual certificate of airworthiness (CofA) was first issued on or after 1 January 2028 (Sections 2.1.1.(f) and (g) of Chapter 2 of Part II of Volume III of ICAO Annex 16). These production cut-off standards were introduced with the first edition of Volume III of ICAO Annex 16.

- For a new aeroplane (21.B.326(a)~~(3)~~(1)(ii)):

The competent authority assesses whether an aeroplane CO₂ emissions production cut-off requirement applies to the aeroplane, and, if such a requirement applies, that the aeroplane conforms to this requirement before issuing the first CofA.

- For a used aeroplane that does not have an airworthiness certificate issued in accordance with Part 21 (for example, an aeroplane imported from a third country) (21.B.326~~(b)(3)~~(a)(3)(iv)):

The competent authority assesses whether an aeroplane CO₂ emissions production cut-off requirement applied to the aeroplane when its first CofA was issued, and, if such a requirement applied, that the aeroplane conformed to that requirement on the date on which the CofA was first issued. The competent authority may check that the CO₂ metric value provided by the applicant for a CofA corresponds to the CO₂ metric value approved by the Agency for the aeroplane type.

Note: For a used aeroplane that has an airworthiness certificate issued in accordance with Part 21 (for example, an aeroplane ~~imported~~ transferred from a Member State), the compliance with the applicable environmental protection requirements was already assessed for the issuance of the previous CofA.

The competent authority may refer to the corresponding certified CO₂ emissions evaluation metric values that are published by the Agency in the EASA Aeroplane CO₂ Emissions Database².

These specific requirements ensure that the CO₂ emissions production cut-off requirement that may apply to the aeroplane is not overlooked. Further guidance material on the applicability of the aeroplane CO₂ emissions requirements is provided in ICAO Doc 9501 'Environmental Technical Manual', Volume III 'Procedures for the CO₂ Emissions Certification of Aeroplanes'.

² <https://www.easa.europa.eu/en/domains/environment/easa-aeroplane-co2-emissions-database-0>